

Intellectual Property Rights

What is Intellectual Property?

Intellectual Property – refers to creations of the mind, such as inventions; literary and artistic works; designs; and symbols, names and images. Intellectual Property rights provide protection for creations and inventions, to enable creators and inventors to earn recognition and financial benefit from their work.

Forms of Intellectual Property

1. Copyright –

Protects creative works like musical compositions, audio recordings, movies, books, articles, diagrams, photos, website content and software applications. Work must be original or expressed differently to be protected under Copyright.

Copyright exists upon fixation of work in tangible medium; no registration necessary except for evidence or establishing ownership.

An author of a work has the following exclusive rights;

- Reproduction of a work;
- Distribution of copies of the work;
- Public performance of the work;
- Broadcasting of the work;
- Communicating the work to public by wire or wireless means;
- Commercial rental of the work

Term- Copyright is valid for the life time of the owner and 50 years after his/her death

2. Trademarks

A trademark is a distinctive sign or mark used in trade to distinguish your goods or services. Trademarks identify the source of products to the consumers. A trademark can be any distinctive word, symbol, slogan, logo, brand label, name, signature, letter, numeral or any combination of them. Distinguish products in market place and helps consumer to identify of source of product or service.

Term- Registration is for 7 years, after 1st renewal it is for 10 years and is renewable every 10 years

3. Industrial designs

Protects the appearance of a product/logo, from the shape of an aero plane to a design of a cloth. The design may consist of three-dimensional features, such as the shape or surface of an article, or of two-dimensional features, such as patterns, lines or color. An industrial design must be new or original and aesthetic to be protected. Industrial design is what makes a product attractive and appealing hence adding commercial value to product and increase its marketability.

Term- 5 years renewable for 2 consecutive periods of five years.

4. Geographical Indication (GI) -

is a name or sign used on certain products which corresponds to a specific geographical location or origin (e.g., a region, or country). A Geographical Indication should have special quality or reputation. Examples: Basmati rice, Swiss watches, Ethiopian coffee, Tequila for spirits produced in Mexico, Electrical appliance Made in UK.

Geographical Indication given in 2022-2023

Name of the product	Category of the product	State or Union Territory
Nurasinghapettai nagaswaram	Handcrafted	Tamil Nadu
Dindigul Locks	Manufactured	Tamil Nadu
Idu Mishmi Testiles	Handicraft	Arunchal Pradesh
Khola Chilli	Agricultural	Goa

Srivilliputtur Palkova	Food Stuff	Tamil Nadu
Kaji Nemu	Agricultural	Assam
Kandangi Saree	Handicraft	Tamil Nadu
Kashmir Saffron	Agriculture	Jammu & Kashmir
Kandhamal Haladi	Agricultural	Odisha
Manipuri Black Rice	Food Stuff	Manipur
Hmaram	Handicraft	Mizoram
Ngotekherh	Handicraft	Mizoram
Kodaikanal Malai Poondur	Agricultural	Tamil Nadu
Rasagola	Food Stuff	Odisha
Palani Panchamirtham	Food Stuff	Tamil Nadu
Pawndum	Handicraft	Mizoram
Tawholhpuan	Handicraft	Mizoram
Tirur Betel Leaf (Tirur Vettala)	Agricultural	Kerala
Gulbarga Tur Dal	Agricultural	Karnataka
Mizo Puanchei	Handicraft	Mizoram

5. What is a Patent?

- A patent is an exclusive right granted by the state for an invention which is a product or a process.
- The product or process should provide in general, a new technical solution to a problem of any field.
- The exclusive rights are territorial and patent protection is granted for a limited period, generally 20 years